

8/21/2026. The OSC re: Dismissal After Conditional Settlement Pursuant to CRC 3.1385(c) calendared for 8/6/2026 is continued to 8/28/2026 as well.

The parties may resolve the issue of cost by way of stipulation, in which case the parties are to request to take the hearing off calendar and file a dismissal or Judgment.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600149	DIPADOVA vs CHEUNG	DEMURRER ON 1ST AMENDED COMPLAINT
CVRI2600149	DIPADOVA vs CHEUNG	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

Moving party: Defendants Newport Care Medical Group, Inc., dba Newport Orthopaedic & Spine Center A Medical Corporation e/s/a and served as Newport Care Medical Group and Sunny Cheung, M.D.

Responding party: Plaintiffs Lisa Dipadova and Anthony Vincent Dipadova, in pro per

This is a medical malpractice litigation initiated on by husband and wife Plaintiffs Lisa Dipadova and Anthony Vincent Dipadova against Sunny C. Cheung, M.D. (“Dr. Cheung”), Newport Care Medical Group, Inc. (“Newport”), and De Anza Surgery Center (“De Anza”). Lisa Dipadova (or “Plaintiff”) sought orthopedic care for hip pain, for which Dr. Cheung recommended femoroacetabular impingement (“FAI”) surgery with labral repair. Dr. Cheung performed this surgery on Plaintiff. After the surgery, Dr. Cheung stated he had only performed one to two similar procedures per year despite the widely recognized risks associated with inexperienced surgeons performing FAI surgeries. The FAC alleges Dr. Cheung did not disclose this critical information to Plaintiff prior to surgery. Plaintiff relied on the representations and omissions of Defendants and consented to the procedure. Following surgery that had technical difficulties, Plaintiff developed permanent femoral nerve damage, severe weakness, loss of function, chronic pain, and permanent disability. Moreover, the primary condition for which the surgery was performed was not successfully repaired. On July 25, 2025, Dr. Cheung drafted a letter acknowledging the permanent nerve injury was not diagnosed until later and was a result of his action.

The operative FAC, filed April 1, 2026, asserts causes of action for (1) Medical Negligence, (2) Fraud by Concealment, (3) Corporate Negligence, and (4) Loss of Consortium.

Newport and Dr. Cheung (“Defendants”) now demur to the FAC, arguing (1) the **second cause of action** for failure to state facts sufficient and fails to allege materiality of the non-disclosure; and (2) the **third cause of action** is duplicative of the first cause of action and failure to state facts sufficient.

In opposition, Plaintiffs maintain the FAC is sufficiently plead to assert causes of action for fraud and corporate negligence. Plaintiffs argue Defendants' materiality argument is improper for purposes of demurrer.

In reply, Defendants generally repeat the arguments advance in their moving papers.

Analysis

I. Meet & Confer

Before filing a demurrer, the moving party **shall** meet and confer, **at least 5 days before a responsive pleading is** due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).) Plaintiff never replied to Defendant's voicemail and subsequent meet and confer letter mailed. (Lam Decl., ¶2.) The parties did not conduct a Code-compliant meet and confer as the parties only emailed. (Dildy Decl., ¶¶6-9.) Nevertheless, the Court will reach the merits.

II. Standard

Demurrers for failure to state a cause of action are commonly referred to as "general" demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as "special demurrers." (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

A demurrer may be based on the grounds that a complaint fails to state a cause of action and/or misjoinder of parties. (Code Civ. Proc., §§ 430.10(d), (e).) A complaint fails to state a cause of action if it shows on its face, or it appears from judicially noticed matter, that the action is barred by an affirmative defense or if it fails to state facts essential to establish each element of each cause of action. (*Halvorsen v. Aramark Unif. Servs.* (1998) 65 Cal.App.4th 1383, 1391; *Rakestraw v. Cal. Physicians' Servs.* (2000) 81 Cal.App.4th 39, 43; *Ankeny v. Lockheed Missiles & Space Co.* (1979) 88 Cal.App.3d 531, 537.) In evaluating a demurrer, the court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions, or conclusions of fact or law. (*Dear v. Yellow Cab Co.* (1967) 67 Cal.2d 695. Further, the complaint allegations must be supported by "ultimate facts," not legal conclusions. (*Burke v. Sup. Ct.* (1969) 71 Cal.2d 276.)

III. Merits – General Demurrer

a. 2nd Cause of Action – Fraudulent Concealment

“[T]he elements of a cause of action for fraud based on concealment are: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850 [internal citations omitted].)

“There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.) “Where, as here, a fiduciary relationship does not exist between the parties, only the latter three circumstances may apply.” These three circumstances, however, ‘presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise.’ [Citation.] ‘A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as “seller and buyer, employer and prospective employee, **doctor and patient**, or parties entering into any kind of contractual arrangement.’” [Citation] (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311, emphasis added.)

“Generally, fraud actions are subject to strict requirements of particularity in pleading.” (*Furia v. Helm* (2003) 111 Cal.App.4th 945, 956.) This means that every element of the cause of action must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) However, the specificity requirements of fraud are “relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts.” (*Quelimane, supra*, 19 Cal.4th at 27.)

Defendants argue the FAC fails to plead fraud with specificity and fails to plead facts sufficient to establish an affirmative duty on the part of Dr. Cheung for fraudulent concealment. Defendants explain that the non-disclosures by Dr. Cheung, that he had only performed one to two hip FAI surgeries and that surgeons at the early stage of learning curve of hip arthroscopy face higher rates of complications, were not material for Plaintiff to make a decision regarding the surgery. Defendants cite to *Arato v. Avedon* (1993) 5 Cal.4th 1172, 1186 to advance this argument where the Court held “[a] physician is under a legal duty to disclose to the patient all material information – that is

‘information which the physician knows or should know would be regarded as significant by a reasonable person in the patient’s position when deciding to accept or reject a recommended medical procedure’ - needed to make an informed decision regarding a proposed treatment”].)

Plaintiffs point out in opposition that instead of addressing the legal sufficiency of the FAC, Defendants reject Plaintiffs’ factual allegations, determine the materiality of allegedly concealed information, resolve questions concerning Defendants’ duties, and draw factual inferences in Defendants’ favor. Plaintiff contends this is improper on a demurrer.

Plaintiff is correct. The limited role of a demurrer is to test the legal sufficiency of a complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer raises issues of law, not fact, regarding the form or content of the opposing party’s pleading. (*Id.*) Defendants’ materiality arguments take on a fact specific finding that is not proper on demurrer whereas the purpose of a demurrer is not to resolve the action on its merits.

Here, the FAC meets the heightened pleading requirement for fraud as it answers how, when, where, who, and what. The FAC alleges Dr. Cheung “recommended that Plaintiff undergo [FAI], a technically demanding orthopedic procedure; that at the time of recommendation, Dr. Cheung had performed only one to two similar procedures; Dr. Cheung failed to disclose this critical lack of experience to Plaintiff before recommending and performing the surgery; Plaintiff reasonably relied upon Dr. Cheung’s recommendation, believing he possessed the training, experience, and competency necessary to safely perform the surgery; and during the FAI, technical complications occurred which ultimately resulted in permanent femoral nerve injury to Plaintiff. (FAC ¶¶10-15.) These allegations, taken as true for purposes of demurrer, are sufficient to state a cause of action for fraudulent concealment. The Court **OVERRULES** the demurrer.

b. 3rd Cause of Action - Corporate Negligence against Newport and De Anza

Defendants argue the corporate negligence claim fails to state facts sufficient because there are no facts pled that Newport was Dr. Cheung’s employer, and the mere granting of surgical privileges does not show the requisite employer-employee relationship.

In opposition, Plaintiff points out she is not seeking to impose liability upon Newport solely under a theory of respondeat superior. Rather, the FAC alleges that Newport independently breached duties owed directly to Plaintiff by failing to exercise reasonable care in the credentialing, oversight, supervision, and management of physicians performing specialized surgical procedures.

Defendants do not address this argument in reply. The failure to respond to a point is “equivalent to a concession.” (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.)

Here, the FAC indeed alleges Newport owed Plaintiff independent duties that include properly credentialing physicians, verifying training, and surgical experience, ensuring competency before granting privileges, and protecting patients from unsafe or unqualified practitioners. (FAC ¶¶117-120.) Thus, based on these allegations, Defendants' argument is rejected.

In *Elam v. College Park Hospital* (1982) 132 Cal.App.3d 332, 340, the Court of Appeal held a hospital may be liable under the doctrine of "corporate negligence" for the malpractice of independent physicians and surgeons who were members of hospital staff, and availed themselves of the hospital facilities, but were not agents or employees of the hospital. (*Id.* at 347-348.) Specifically, the court found that a failure to adequately supervise the competence of staff physicians is held to create an unreasonable risk of harm to the patients, and any patient injury caused by staff incompetence is therefore directly actionable against the hospital. (*Id.* at 340-342.) Thus, *Elam* provides a theory under which a hospital or health facility can be found liable for the medical malpractice of its staff.

In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606.)

Here, the FAC further alleges Defendants breached the aforementioned duties by negligently granting surgical privileges for complex hip arthroscopy to a surgeon with extremely limited experience; failed to require minimum case volume thresholds for performing FAI surgery; failing to require supervision or proctoring for a surgeon with minimal procedural experience; failure to monitor surgical outcomes or competency before allowing independent performance of the procedure; and failure to implement adequate credentialing safeguards designed to protect patients undergoing complex orthopedic procedures. (FAC ¶128.) This breach caused Plaintiff harm. (*Id.* ¶¶131-134.) **Plaintiff sufficiently pleads a claim for corporate negligence.**

c. Duplicative Claims

Defendants contend the corporate negligence claim is duplicative of the first cause of action for professional negligence and violates the primary rights doctrine that allows a plaintiff to bring only one cause of action to vindicate a primary right.

Plaintiff asserts the two claims are not duplicative because the professional negligence claim is directly based on Dr. Cheung's conduct whereas the corporate negligence cause of action is directed at Newport's independent conduct.

As discussed earlier, in the FAC the corporate negligence claim is a direct claim against Newport. However, the first cause of action is asserted against all defendants, including Newport.

The elements for a claim of professional negligence are the same as corporate negligence/professional malpractice.

The elements of a cause of action for negligence are: (1) Defendant's legal duty of care toward plaintiff; (2) Defendant's breach of duty (the negligent act or omission); (3) injury to plaintiff as a result of the breach (proximate or legal cause); and (4) damage to plaintiff. (See *George A. Hormel & Co. v. Maez* (1979) 92 Cal.App.3d 963, 966; see also 4 *Witkin Cal. Proc. Plead* §537; *Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.)

Courts have long held that a duplicative cause of action is also a basis for sustaining a demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268 [duplicative cause of action for breach of fiduciary duty subject to dismissal by way of demurrer]; *Award Metals, Inc. v. Superior Court* (1991) Cal.App.3d 1128, 1135 [demurrer properly sustained to duplicative negligence cause of action].) However, although other courts have disagreed regarding a "duplicative" challenge, the Court should not sustain the demurrer at the pleading stage on that basis. (See *Palm Springs Villas II Homeowners Assn., supra*, 248 Cal.App.4th at 290.) This is especially true since the *Blickman Turkus Court* explained: "This is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890.)

The Court OVERRULES the general demurrer.

The Defendants are ordered to file an Answer within 10 days of this order. (Cal. Rules of Court, rule 3.1320 (j).)